

BEFORE THE NATIONAL COMPANY LAW APPELLATE TRIBUNAL

Company Appeal (AT) (Insolvency) No. 105/2024

Date of Decision: 22-03-2024

State Bank of India ... Financial Creditor

VERSUS

ABC Energy Ltd ... Corporate Debtor

FACTS OF THE CASE:

1. Application under Section 7 of Insolvency and Bankruptcy Code, 2016.

ISSUES:

1. Occurrence of default exceeding statutory threshold.

REASONING & DECISION:

Financial debt and default established; NCLT rightly admitted CIRP.

RATIO DECIDENDI:

Adjudicating Authority under Section 7 IBC need only satisfy existence of debt and default.

DECISION:

Order of NCLT admitting CIRP affirmed.